NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, BENCH – II

C.A.(CAA)06/ND/2020

IN THE MATTER OF SCHEME OF AMALGAMATION :

WARRENDALE TECHNOLOGY SERVICES INDIA PRIVATE LIMITED
(Applicant No.1/Transferor Company)

WITH

NAVISITE INDIA PRIVATE LIMITED
(Applicant No.2/Transferee Company)

Order Delivered on : 25.09.2020

Section: 230 to 232 of the Companies Act, 2013

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

SHRI L.N. GUPTA, MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Rajneesh Sood, and
Ms. Shikha Prabhakar, Advocates

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. CA(CAA)06/ND/2020 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding of the meeting of the Equity Shareholders and Creditors in relation to the Transferor and Transferee Companies.

2. That Warrendale Technology Services India Private Limited (hereinafter referred to as the "Transferor Company") having CIN No.-U74999DL2018PTC342044) is a Company incorporated under the provisions of the Companies Act, 2013 on 21.11.2018. The registered office of the Transferor Company is situated at Plot 82, 2nd Floor, Block-B, Naraina Vihar, New Delhi-110028.

3. That Navisite India Private Limited (hereinafter referred to as the "Transferee Company") having CIN No. U72200DL2004FTC131692 is a Company incorporated under the provisions of the Companies Act, 1956 on 30.12.2004. The registered office of the Transferee Company is located at Plot 82, 2nd Floor Block-B, Naraina Vihar, New Delhi-110028.

4. That the present Petition has been preferred jointly by the Transferor Company and Transferee Company. The 'Transferor Company' and 'Transferee' Company together are called the 'Applicant

Companies' hereinafter. That the Registered offices of both the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

5. It is seen that the Board of Directors of the Applicant Companies vide separate meetings held on 19.03.2020 had approved the Scheme of Amalgamation.

6. That the Applicant Companies have filed separate Affidavits in compliance of the Section 230(2)(a) of Companies Act 2013 submitting therein that the Applicant Companies are not under any prosecution/investigation/inquiry under the Companies Act 2013.

7. That the Applicants Companies have also placed on record the Certificates from the Statutory Auditors conforming that their Accounting standards are in conformity with the provision of Section 133 of the Companies Act 2013.

8. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheet as on 31.03.2019.

9. That the position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf :

Company	No. of Share holders	Percentage of Shareholders given consent	No. of Secured Creditors	Percentage of Secured Creditors given consent	No. Of Unsecured Creditors	Percentage of Unsecured Creditors given consent
Warrendale Technology Services India Private Limited (Transferor Company)	3	100%	Nil	Not Applicable	Nil	Not Applicable
Navisite India Private Limited (Transferee Company)	2	100%	Nil	Not Applicable	Nil	Not Applicable

10. That all the shareholders of the Applicant Companies have given their 'no objection' to the Scheme on their respective affidavits. In view of the above, the requirement of convening Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

11. That there are no secured and unsecured creditors in the Applicant Companies. That the Certificate of Chartered Accountant conforming the same has also been placed by the Applicant Companies.

12. Since there are no Secured Creditors and Unsecured Creditors in any of the Applicant Companies, the requirement of convening their meetings does not arise.

13. The Application is **allowed** in the aforesaid terms.

-Sd-

(L. N. GUPTA)
MEMBER (T)

-Sd-

(CH. MOHD. SHARIEF TARIQ)
MEMBER (J)